



CHAPTER xiv.

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April one thousand nine hundred and forty-three to the thirtieth day of September one thousand nine hundred and forty-four and for other purposes.

[22nd July 1943.]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council ^{2 & 3 Geo. 5.} (Finance Consolidation) Act 1912 as amended or extended by ^{c. cv.} subsequent Acts (hereinafter referred to as "the principal Act") and by Acts to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year (which periods are in the principal Act and in this Act referred to severally as a "financial period"):

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September one thousand nine hundred and forty-three regulated by the London County Council (Money) Act 1942:

^{5 & 6 Geo. 6.}
^{c. vi.}

And whereas emergency provisions were enacted in the London County Council (Money) Act 1940 (hereinafter referred to as "the Act of 1940") with reference to the expenditure of money on capital account and the lending of money by the Council for any purpose arising out of war damage or in connection with measures rendered necessary or expedient by the existence of a state of war in addition to the amounts specified in any annual money Act:

^{3 & 4 Geo. 6.}
^{c. xxii.}

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April one thousand nine hundred and forty-three to the thirtieth day of September one thousand nine hundred and forty-four (hereinafter referred to as "the financial period 1943-1944") otherwise than under the said provisions of the Act of 1940 should be regulated as by this Act provided :

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period 1943-1944 in the execution of the powers and duties respectively delegated to those committees and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council :

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1943-1944 are set out in Part I of the First Schedule to this Act :

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period 1943-1944 are set out in Part II of the said schedule :

1 Edw. 8. &
1 Geo. 6.
c. xlviii.

And whereas the further sums which the Treasury in pursuance of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 may authorise the Council to expend on capital account or to lend during the financial period 1943-1944 are set out in Part III of the said schedule :

And whereas the sums specified in the said Parts I II and III of the First Schedule to this Act are to the extent set out in Part IV of the said schedule sums which the Council were by virtue of the said London County Council (Money) Act 1942 authorised to expend or lend but were not before the first day of April one thousand nine hundred and forty-three expended or lent :

And whereas it is expedient that consolidated stock and certain registered bonds issued by the Council should in law be transferable by instrument in writing and in no other manner and that the provisions contained in this Act for or with respect to the issue of certificates for and the registration and transfer of such stock or bonds and the payment of dividends and redemption moneys in respect thereof should be enacted :

And whereas it is expedient that in connection with the last-mentioned objects the enactments mentioned in the Third Schedule to this Act should be repealed to the extent specified in the third column of that schedule :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the London County Council (Money) Act 1943 and shall be read and have effect as one with the principal Act. Short title and construction.

2. In and for the purposes of this Act— Interpretation.

“ the Council ” means the London County Council ;

“ the principal Act ” means the London County Council (Finance Consolidation) Act 1912 as amended or extended by any subsequent Act ;

“ the Act of 1920 ” means the London County Council (Money) Act, 1920 ; 10 & 11 Geo. 5.
c. cxlvii.

“ the Act of 1940 ” means the London County Council (Money) Act 1940 ;

“ the financial year ” means the period from the first day of April one thousand nine hundred and forty-three to the thirty-first day of March one thousand nine hundred and forty-four both dates inclusive ;

“ the following six months ” means the period from the first day of April one thousand nine hundred and forty-four to the thirtieth day of September one thousand nine hundred and forty-four both dates inclusive ;

“ the financial period 1943-1944 ” means the financial year and the following six months ; and

“ the appointed day ” means the first day of September one thousand nine hundred and forty-three ;

“ the bank ” means the Bank of England ;

“ certificate ” means (except where used in paragraph 20 of the Second Schedule to this Act) a certificate issued in pursuance of that schedule ;

“ stock ” means—

(a) consolidated stock issued or to be issued by the Council under the principal Act ; and

(b) bonds or other securities to be issued by the Council under the Public Authorities and Bodies (Loans) Act 1916 and registered pursuant to sub-section (1) of section 8 (Power to register bearer bonds) of the Act of 1920 ; 6 & 7 Geo. 5.
c. 69.

“register” means a register of stock and stockholders required to be kept under the Second Schedule to this Act; and

“registrar” means—

(a) in the case of stock of any description the register relating to which is kept at the office of the Council under the Second Schedule to this Act such officer of the Council as the Council may from time to time designate for the purpose;

(b) in the case of stock of any other description the bank.

Expenditure
on capital
account
during
financial
period
1943-1944.

3.—(1) The purposes for which during the financial period 1943-1944 the Council may under the powers of section 4 (Power to expend money on capital account) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the First Schedule to this Act.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those mentioned in the sixth and seventh columns respectively of Part I of the said schedule in relation to the said purposes respectively.

Amount
authorised to
be lent to and
borrowed by
local
authorities
and others
during
financial
period
1943-1944.

4. The sums which during the financial period 1943-1944 the Council may lend under the powers of section 7 (Power to lend money to local authorities and others) of the principal Act and which the bodies and persons mentioned in that section are authorised to borrow from the Council shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those specified in the second and third columns respectively of Part II of the First Schedule to this Act in relation to such bodies and persons respectively.

Amount of
further
expenditure
and loans
which
Treasury
may authorise
in case of
insufficiency.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 to expend on capital account or to lend during the financial period 1943-1944 in case the amounts specified in Parts I and II of the First Schedule to this Act or any of those amounts are found to be insufficient shall as regards the financial year and the following six months respectively be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the said schedule.

6.—(1) Any money lent by the Council to governors or managers of educational institutions (including special and approved schools) or to committees of school treatment centres or to governors or committees of voluntary hospitals and hostels in pursuance of powers conferred by the principal Act and this Act shall be repaid to the Council within such period or periods not exceeding sixty years from the date or respective dates of lending the same as the Council with the approval of the Treasury may determine.

(2) Any money lent by the Council to any bodies or persons in pursuance of the provisions of the Civil Defence Act 1939 shall be repaid to the Council within a period not exceeding ten years as prescribed by that Act.

Periods for repayment of loans to certain bodies and persons.

2 & 3 Geo. 6.
c. 31.

7.—(1) As from the appointed day—

(a) stock shall cease to be transferable in the manner provided by subsection (1) of section 22 (As to transfer of stock) of the principal Act or by subsection (4) of section 8 (Power to register bearer bonds) of the Act of 1920 and shall in law be transferable by instrument in writing and in no other manner;

(b) the provisions contained in the Second Schedule to this Act shall have effect for the purposes of and in connection with the issue of certificates for and the registration and transfer of stock and the payment of dividends and redemption moneys in respect thereof;

(c) the enactments mentioned in the Third Schedule to this Act shall be and are hereby repealed to the extent specified in the third column of that schedule.

Registration and transfer of stock &c.

(2) Nothing in this section shall affect any stock in respect of which a stock certificate issued under Part V of the National Debt Act 1870 as applied by section 25 (Certificates to bearer) of the principal Act is for the time being outstanding or any other bearer security.

33 & 34 Vict.
c. 71.

8. Nothing in this Act shall alter or affect the operation of section 7 (Emergency expenditure or lending for war damage &c.) of the Act of 1940.

Saving for emergency provisions of Act of 1940.

9. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Acts 1939 and 1940 it shall not be lawful to exercise the powers of borrowing conferred by this Act without such consent.

Saving for emergency powers of Treasury.
2 & 3 Geo. 6.
c. 62.
3 & 4 Geo. 6.
c. 20.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE

PART I.

ESTIMATED REQUIREMENTS FROM 1ST APRIL 1943 TO 30TH SEPTEMBER 1944 FOR CAPITAL EXPENDITURE

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1944. (6)	Estimated Requirement for Six Months ending 30th September 1944. (7)
		Total Parliamentary Estimate. (3)	Expenditure to 31st March 1943 (Approximate). (4)	Revised Estimate where necessary. (5)		
1. Metropolis Management Act 1855 and various Acts authorising improvements and works.	Construction widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London and contributions towards cost of such improvements and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	£ *	£ —	£ —	£ \$20,495	£ \$12,230
2. Local Government Act 1888 and sundry Acts relating to bridges.	Acquisition of property in connection with construction of new Wandsworth Bridge.	*	—	—	\$40	—
3. Lunacy and Mental Treatment Acts 1890 to 1930.	Construction of new Waterloo Bridge.	*	—	—	\$30,390	\$400
	Additions and alterations to mental hospitals.	*	—	—	300	—

4. London County Council (Tramways and Im- provements) Act 1920.	Acquisition of property in connection with widening of Cable Street.	†595,500	305,427	—	\$330	—
5. Poor Law Act 1930.	Additions and alterations to mental institu- tions.	*	—	—	290	130
	Additions and alterations to social welfare institutions	*	—	—	4,370	—
6. London County Council (Vauxhall Cross Improvement) Act 1931.	Acquisition of property in connection with street improvements at Vauxhall Cross.	617,000	201,947	336,000	\$2,560	—
7. London County Council (General Powers) Act 1934.	Acquisition of property and execution of works in connection with Westferry-road to West India Dock-road improvement.	†145,750	11,655	73,750	\$90	—
8. Housing Act 1936.	Acquisition of property erection of dwellings and other purposes.	*	—	—	†454,400	†51,000
	Advances to persons or bodies of persons.	*	—	—	†1,000	†500
9. London and Middlesex (Improvements &c.) Act 1936.	Acquisition of property and execution of works in connection with extension of Cromwell-road.	1,620,000	467,798	—	\$5,085	—
10. Public Health (London) Act 1936.	Additions and alterations to hospitals.	*	—	—	3,100	—
11. Public Health (London) Act 1936 and various Acts relating to main drainage.	Re-organisation of pumping machinery provision of sewers and other purposes.	*	—	—	\$11,500	5,000
	Carried forward ...	...	...	...	533,950	69,260

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

§ After allowing for contributions receivable by the Council.

† This figure includes the estimated cost of other purposes of the same Act.

‡ In addition to the methods of raising money authorised by the principal Act the Council are empowered by virtue of section 122 of the Housing Act 1936 with the consent of the Minister of Health to raise by the issue of bonds any sums which they have power to borrow for the purposes of that Act

FIRST SCHEDULE—continued.

Brought forward £1,630,915

PART II.

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS.

Bodies and persons to whom money may be lent. (1)	During year ending 31st March 1944. (2)	During six months ending 30th September 1944. (3)
18. Metropolitan borough councils.	£ 1,000,000	£ 500,000
19. Governors or managers of educa- tional institutions (including special and approved schools) committees of school treatment centres and governors or commit- tees of voluntary hospitals and hostels.	1,000	500
20. Sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923.	1,000	500
21. Sundry persons under the Civil Defence Act 1939 section 29.	5,000	2,500
Total	†1,007,000	†503,500
		£1,510,500

† The provision for advances to persons or bodies of persons under the Housing Act 1936 is included under item 8 of this schedule.

PART III.

EXPENDITURE OR LOANS WHICH MAY BE AUTHORISED BY THE
TREASURY BEYOND AMOUNTS SPECIFIED IN PARTS I AND II
OF THIS SCHEDULE.

Purposes. (1)	During year ending 31st March 1944. (2)	During six months ending 30th Septem- ber 1944. (3)
22. General enlargement of spending and lending power to provide under Treasury sanction for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in the fore- going estimates.	£ 750,000	£ 250,000
		£1,000,000

Carried forward £4,141,415

FIRST SCHEDULE—*continued.*

Brought forward £4,141,415

PART IV.

AMOUNTS INCLUDED IN THE FOREGOING PARTS OF THIS SCHEDULE WHICH WERE AUTHORISED BY VIRTUE OF THE LONDON COUNTY COUNCIL (MONEY) ACT 1942 TO BE EXPENDED OR LENT BUT NOT HAVING BEEN EXPENDED OR LENT BEFORE 1ST APRIL 1943 ARE INCLUDED AGAIN IN THIS ACT.

IN ORDER TO ASCERTAIN THE NET AGGREGATE NEW POWERS OF EXPENDING OR LENDING MONEY CONFERRED BY VIRTUE OF THIS ACT IT IS NECESSARY TO DEDUCT THE FOLLOWING SUMS FROM THE SUMS REFERRED TO IN THE FOREGOING PARTS OF THIS SCHEDULE.

Reference to number of item in a foregoing Part of this schedule.	Purposes of expenditure or loan.	Amount (approximate).
1	Metropolis Management Act 1855 and various Acts authorising improvements and works.	£ 32,725
2	Local Government Act 1888 and sundry Acts relating to bridges.	13,613
3	Lunacy and Mental Treatment Acts 1890 to 1930.	300
4	London County Council (Tramways and Improvements) Act 1920.	330
5	Poor Law Act 1930.	4,011
6	London County Council (Vauxhall Cross Improvement) Act 1931.	1,555
7	London County Council (General Powers) Act 1934.	90
8	Housing Act 1936.	107,925
9	London and Middlesex (Improvements &c.) Act 1936.	5,085
10	Public Health (London) Act 1936.	2,048
11	Public Health (London) Act 1936 and various Acts relating to main drainage.	16,500
12	London County Council (General Powers) Act 1937.	41,585
13	Green Belt (London and Home Counties) Act 1938.	107,204
14	London County Council (Tunnel and Improvements) Act 1938.	2,780
15	London County Council (General Powers) Act 1939.	30
16	Civil Defence Act 1939.	130
17	Any other Act.	750,000
18	Loans to metropolitan borough councils.	1,445,000
19	Loans to governors or managers of educational institutions &c.	1,500
	Carried forward	2,532,411 £4,141,415

FIRST SCHEDULE—*continued.*

Brought forward £4,141,415

Reference to number of item in a foregoing Part of this schedule.	Purposes of expenditure or loan.	Amount (approximate).
	Brought forward	£ 2,532,411
20	Loans to sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923.	975
21	Loans to sundry persons under the Civil Defence Act 1939 section 29.	7,370
22	General enlargement of spending and lending power under Treasury sanction.	750,000
		<u>£3,290,756</u>
		<u>£3,290,756</u>

NET AGGREGATE NEW POWERS OF EXPENDITURE OR LOAN
(FOR THE PURPOSES OF WHICH THE COUNCIL MAY
RAISE MONEY BY BORROWING OR OTHERWISE).

		£	£
For Council	For year ending 31st March 1944.	442,974	
	For six months ending 30th September 1944.	352,030	
		<u>795,004</u>	
For loans	For year ending 31st March 1944.	25	
	For six months ending 30th September 1944.	55,630	
		<u>55,655</u>	
			<u>£850,659</u>

SECOND SCHEDULE.

PROVISIONS RELATING TO THE ISSUE OF CERTIFICATES FOR AND
THE REGISTRATION AND TRANSFER OF STOCK AND THE PAYMENT
OF DIVIDENDS AND REDEMPTION MONEYS.

REGISTRATION.

Registers of Stock and Stockholders.

1.—(1) The Council shall cause to be kept at their office or (subject to the provisions of the principal Act) at the office of the chief accountant of the bank in respect of stock of each description registers wherein shall be entered the names and addresses of all persons who are for the time being holders of stock of that description and the amounts of stock of that description of which they are respectively for the time being holders.

(2) In the event of the redemption of stock of any description the register relating to that stock may be permanently closed for transfers of amounts of that stock on any day not more than one month immediately preceding the date on which the redemption is to take effect.

(3) Any such register as aforesaid shall be prima facie evidence of any matters directed or authorised by any enactment for the time being in force to be entered therein and of the title of the persons whose names are entered therein as holders of amounts of stock.

STOCK CERTIFICATES.

Issue of stock certificates.

2.—(1) The following persons (that is to say):—

- (a) a person whose name (on the compilation on the occasion of the issue of stock of any description of the register relating to that stock) is entered in that register as the holder of an amount of stock of that description ;
- (b) a person to whom an amount of stock of any description is transferred ;
- (c) a person in whose name there stood immediately before the appointed day in the books required to be kept under the principal Act an amount of stock of any description ; and
- (d) a person whose name is by virtue of section 33 (Nominee in a nominal certificate not entitled to have it renewed as nominal) of the National Debt Act 1870 as applied by section 25 (Certificates to bearer) of the principal Act or by virtue of section 8 (Power to register bearer bonds) of the Act of 1920 entered in the register relating to stock of any description as the holder of an amount of stock of that description ;

shall be entitled (without payment) to a certificate representing that amount of stock of that description.

(2) If a certificate is defaced lost or destroyed the registrar may issue a duplicate thereof on payment of a fee of two shillings and

2ND SCH.
cont.

sixpence and on such terms as to evidence and indemnity as he thinks fit and (in a case in which the certificate is defaced) on condition of the surrender thereof.

(3) Where an amount of stock of any description is transferred and the conditions specified in sub-paragraph (a) (b) or (c) of paragraph 7 (Conditions to be fulfilled before completion of transfer) of this schedule have been satisfied in respect of an amount of stock of that description exceeding the amount specified in the instrument of transfer the person by whom the amount was transferred shall be entitled to a certificate representing the amount of the excess but (in a case in which the conditions satisfied were those specified in the said sub-paragraph (b) or the said sub-paragraph (c)) only on payment of a fee of two shillings and sixpence.

(4) Where in the case of a person in whose name there stood in the books required to be kept under the principal Act immediately before the appointed day an amount of stock of any description—

(a) there is transferred by that person an amount of stock of that description which is less than the amount first-mentioned in this sub-paragraph; and

(b) there has not been issued a certificate in respect of such first-mentioned amount before the delivery to the registrar of the instrument of transfer;

sub-paragraph (1) of this paragraph shall on and from the date on which effect is given to such transfer cease to have effect in relation to that person but he shall be entitled (without payment) to a certificate representing the difference between the said first-mentioned amount of stock and the amount of stock transferred.

(5) Where the names of two or more persons are entered in the register relating to stock of any description as joint holders of an amount of stock of that description nothing contained in the foregoing provisions of this paragraph shall be construed as requiring the registrar to issue more than one certificate in respect of that amount of stock and delivery of a certificate to one of several joint holders shall be sufficient delivery to all of them.

Form and effect of stock certificate.

3.—(1) A certificate shall specify the amount of the description of stock of which the person specified therein is the holder and shall bear a facsimile of the signature of—

(a) in the case of stock of any description the register relating to which is kept by the Council the registrar;

(b) in the case of stock of any description the register relating to which is kept by the bank the chief accountant of the bank.

(2) A certificate shall be prima facie evidence of the title of the person specified therein to the amount of stock of the description so specified.

TRANSFER OF STOCK.

Mode of transfer.

4. Stock shall be transferable by instrument in writing in any usual or common form executed by all parties to the transfer and delivered to and retained by the registrar.

*Attestation of execution of instrument of transfer.*2ND SCH.
—cont.

5. The registrar may decline to recognise an instrument of transfer relating to an amount of stock of any description unless the following requirements are complied with:—

- (a) the execution of the instrument by each party to the transfer must be attested by a credible witness not being a party thereto or the spouse of a party thereto;
- (b) the witness must append to his signature a statement of his occupation or description and his usual place of abode or place of business.

Evidence that person executing instrument by mark etc. understood effect thereof.

6. Where the execution by a party of an instrument of transfer relating to an amount of stock of any description is otherwise than by signature the registrar may decline to recognise the instrument unless there is furnished to him such evidence as he may reasonably require (whether by way of a statement written on the instrument and signed by the person witnessing the execution of the instrument by that party or otherwise) that the effect of the instrument was understood by that party.

Conditions to be fulfilled before completion of transfer.

7. The registrar may decline to give effect to a transfer of an amount of stock of any description unless—

- (a) the instrument of transfer is accompanied by a certificate representing or certificates representing in the aggregate an amount of stock of the description specified in the instrument of transfer not falling short of the amount so specified (being a certificate or certificates wherein the transferor is specified as the holder of the stock); or
- (b) there is furnished to the registrar such evidence as he may reasonably require that a certificate representing or certificates representing in the aggregate an amount of stock of the description specified in the instrument of transfer not falling short of the amount so specified (being a certificate or certificates wherein the transferor is specified as the holder of the stock) has or have been lost or destroyed; or
- (c) the instrument of transfer is accompanied by a certificate representing or certificates representing in the aggregate an amount of stock of the description specified in the instrument of transfer equal to a part of the amount so specified (being a certificate or certificates wherein the transferor is specified as the holder of the stock) and as to the residue thereof there is furnished to the registrar such evidence as he may reasonably require that a certificate representing or certificates representing in the aggregate an amount of stock of that description not falling short of the residue (being a certificate or certificates wherein the transferor is specified as the holder of the stock) has or have been lost or destroyed; and

2ND SCH.
—cont.

- (d) where sub-paragraph (b) or (c) of this paragraph has effect there is given to the registrar such indemnity against all claims in respect of lost or destroyed certificates as he may reasonably require.

The foregoing provisions of this paragraph shall not have effect in relation to the transfer of an amount of stock of any description issued before the appointed day as respects which there has not been issued a certificate before the delivery to the registrar of the instrument of transfer.

Evidence of right to make transfer.

8.—(1) The registrar may decline to give effect to a transfer of an amount of stock of any description issued before the appointed day (being an amount as respects which there has not been issued a certificate before the delivery to the registrar of the instrument of transfer) unless there is furnished to him such evidence as he may reasonably require of the right of the transferor to make the transfer.

(2) The registrar may decline to give effect to a transfer of an amount of stock of any description other than as aforesaid unless there is furnished to him (in addition to the evidence furnished by virtue of the production of a certificate or under paragraph 7 (Conditions to be fulfilled before completion of transfer) of this schedule) such evidence as he may reasonably require of the right of the transferor to make the transfer.

Time for completion of transfer.

9. The registrar shall not be required to give effect to a transfer of an amount of stock of any description until the expiration of whichever of the periods hereinafter mentioned last expires (that is to say):—

- (a) the period of ten days beginning with the day next following that on which the instrument of transfer is delivered to him ;
or
(b) (if before the expiration of the said period the registrar sends to the person specified in the instrument of transfer as being the transferor (or where two or more persons are specified in the said instrument as being the transferors to one of those persons) a written notice informing him of the proposed transfer) the period of three days beginning with the day next following that on which a reply from that person would be delivered to the registrar in the ordinary course of post if the said notice were delivered in the ordinary course of post and the reply were posted immediately after the receipt of the notice.

Completion of transfer.

10. The registrar shall give effect to a transfer of an amount of stock of any description by entering in the register relating to that stock such particulars as are requisite to show the effect of the transfer.

Transferor to remain holder until completion of transfer.

2ND SCH.
—cont.

11. The transferor of an amount of stock of any description shall be deemed to remain the holder thereof until the registrar has given effect to the transfer.

DIVIDENDS, AND REDEMPTION MONEYS.

Date for striking balance for dividends.

12. The registrar may strike the balance for a dividend on stock of any description on any day not being more than thirty-seven days before the day on which the dividend on that stock is payable and any person who is on the day on which the balance is so struck entered in the register relating to that stock as the holder of an amount of that stock shall as between himself and any transferee of that stock be entitled to the then current half-year's or quarter's dividend thereon.

Payment of dividends and redemption moneys.

13.—(1) Dividends on stock of any description and any money becoming payable to the holder of stock of any description by reason of the redemption thereof shall be paid by the Council through the registrar by means of warrants sent through the post to the registered address of the person registered as the holder of the stock in respect of which the dividend or other money is payable (or in the case of joint holders of stock to the registered address of that one of them whose name stands first on the register relating to that stock) or to such other person and to such other address as the holder (or in the case of joint holders all the holders) may direct in writing addressed to the registrar:

Provided that in the case of the redemption of stock of any description the registrar may (if he thinks fit) require the holder or the joint holders (as the case may require) of the stock to make application in writing specifying the person to whom payment of the money payable on the redemption of the stock is to be made and the address to which the warrant is to be sent and upon receipt of such application the registrar shall make the payment in accordance therewith.

(2) The posting of any such warrant as aforesaid in a prepaid letter directed to such address as aforesaid shall be a good discharge to the registrar for such dividend or other money.

(3) Every warrant as aforesaid so sent by post shall be deemed to be a cheque and the registrar in relation thereto shall be deemed to be a banker within the Bills of Exchange Act 1882.

45 & 46 Vict.
c. 61.

(4) For the purposes of this paragraph the personal representative or personal representatives of a deceased person shall be deemed to be the holder or joint holders (as the case may require) of the amount of stock of any description held by that person immediately before the date of his death.

Evidence of title to dividend or redemption moneys.

14. Before paying any dividend on stock of any description or any money becoming payable to the holder of stock of any description by reason of the redemption thereof the registrar may (if the

2ND SCH.
—cont.

circumstances of the case appear to him to make it expedient) require evidence of the title of any person claiming the right to receive payment thereof either by means of a statutory declaration of competent persons or otherwise as the registrar may think fit.

Investment of dividends on stock held by infants.

15. In the following cases (that is to say) :—

(a) where an infant is registered as the sole or sole surviving holder of stock of any description ; or

(b) where an infant is registered as the holder of stock of any description jointly with a person under legal disability ;

the registrar may at the request in writing of the parent guardian or next friend of the infant retain the dividends on such stock and apply them to the purchase of stock of the same description which shall be added to the original investment.

MISCELLANEOUS PROVISIONS.

Transfer by personal representatives.

16.—(1) An amount of stock of any description entered in a register in the name of a deceased person shall be transferable by his personal representative but in a case in which there are two or more personal representatives of the deceased person the registrar may decline to give effect to the transfer unless the instrument of transfer is executed by all the representatives.

(2) The production to the registrar of any document which is by law sufficient evidence of probate of the will or letters of administration of the estate or confirmation as executor of a deceased person having been granted to some person shall be accepted by the registrar as sufficient evidence of the grant.

Powers of attorney.

17.—(1) An authority to execute an instrument of transfer relating to an amount of stock of any description must be in writing and the execution of the instrument containing any such authority must be attested by a credible witness.

(2) A power of attorney in force immediately before the appointed day authorising any person in relation to stock of any description to effect transfers of amounts of stock of that description shall remain in force and shall be construed as authorising that person in relation to stock of that description to effect transfers of amounts thereof in accordance with the provisions of this Schedule.

Execution of instrument of transfer by body corporate.

18. Nothing in this Schedule shall be construed as authorising a body corporate to execute an instrument of transfer otherwise than in accordance with the rules of law and the provisions of any instrument (including an Act of Parliament) regulating the constitution of that body with respect to the execution of instruments by that body.

Protection of registrar in relation to trusts.

19. No notice of any trust (express implied or constructive) shall be entered in any register or in a certificate or be receivable by the registrar.

*Loss or destruction of certificate to bearer or scrip certificate.*2ND SCH.
—cont.

20.—(1) In the event of the loss or destruction of a certificate to bearer or a scrip certificate the registrar (before issuing a duplicate thereof) may require—

- (a) evidence to his satisfaction of the loss or destruction and ownership of the certificate ; and
- (b) a delay of not more than one year from the date on which the loss or destruction was notified to him ; and
- (c) an advertisement of the loss or destruction to be inserted in at least two daily newspapers published in London ; and
- (d) the execution of a bond of indemnity by the owner of the lost or destroyed certificate and at least one other responsible person or alternatively (in the case of stock of any description the register relating to which is kept by the bank) the transfer (by way of security) into the joint names of the governor and deputy governor of the bank of a security of a description approved by the said governor or deputy governor having a market value equivalent in the aggregate to the market value on the day of transfer of the stock represented by the lost or destroyed certificate and at least six-and-a-half years' dividends on the nominal amount of such stock.

(2) After the expiration of six years from the date of the execution of the bond of indemnity or the transfer of the security pursuant to paragraph (d) of the preceding sub-paragraph the owner of the lost or destroyed certificate may (after again inserting an advertisement of the loss or destruction in at least two daily newspapers published in London if the registrar so requires) request the registrar to cancel the indemnity or to re-transfer the security to the owner as the case may be and on such request being complied with any other claimant to the lost or destroyed certificate or the stock represented thereby shall not have any claim against the registrar but shall have recourse against the person who obtained the duplicate certificate.

Transitional provisions.

21. Where in relation to an amount of stock of any description an instrument of transfer executed in accordance with the Government and other Stocks (Emergency Provisions) Act 1939 has been delivered to the registrar but has not been given effect to before the appointed day the provisions of this schedule shall apply in relation to the transfer of that amount.

2 & 3 Geo. 6.
c. 100.*Consequential amendments.*

22.—(1) In the undermentioned provisions of the principal Act (that is to say) :—

- paragraph (2) and paragraph (3) of section 25 (Certificates to bearer) ;
- section 33 (Provisions in case books kept by Council) ; and
- paragraph (a) of subsection (1) of section 36 (Arrangements with bank) ;

the words " the registers required to be kept under the Second Schedule to the London County Council (Money) Act 1943 " shall

2ND SCH.
—cont.

be substituted for the words "the books required to be kept under this Act".

(2) Subsection (1) of section 8 (Power to register bearer bonds) of the Act of 1920 shall be read and have effect as if the words "in accordance with the provisions of the Second Schedule to the London County Council (Money) Act 1943" were therein substituted for the words "in books to be kept for that purpose".

(3) The books kept under the principal Act immediately before the appointed day shall be deemed to be registers required to be kept under this schedule.

THIRD SCHEDULE.

ENACTMENTS REPEALED.

Session and chapter.	Short title.	Extent of repeal.
2 & 3 Geo. 5. c. cv.	The London County Council (Finance Consolidation) Act 1912.	Sections twenty-one to twenty-four. In section twenty-six the words "in the books required to be kept under this Act". Section thirty-nine. The First Schedule.
10 & 11 Geo. 5. c. cxlvii.	The London County Council (Money) Act 1920.	Sub-sections (2) (3) and (4) of section eight.
18 & 19 Geo. 5. c. xcvi.	The London County Council (Money) Act 1928.	In sub-section (1) of section seven the words from "Section 21" to "(Closing of books)" and the words "Section 39 (False entries in books)".
26 Geo. 5. & 1 Edw. 8. c. ciii.	The London County Council (Money) Act 1936.	Section nine.

Printed by NORMAN GIBB SCORGIE, C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament

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(P 1706)